

WFG National-Default Services

RECORDING REQUESTED BY
Law Offices of Jason C. Tatman

And When Recorded Mail To
SECRETARY OF HOUSING AND URBAN DEVELOPMENT
C/O Compu-Link, HUD Division
14002 East 21st St., Suite 300
Tulsa, OK 74134

APN 141-81-323

TS No. LO-53976-AZ

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**U.S. DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT
NOTICE OF DEFAULT AND FORECLOSURE SALE**

Recorded in accordance with 12 USCA 3764 (c)

WHEREAS, on 3/13/2008, a certain Deed of Trust was executed by WILLIAM J. YOTHER and SHIRLEY L. YOTHER, HUSBAND AND WIFE AS COMMUNITY PROPERTY WITH RIGHT OF SURVIVORSHIP as trustor in favor of LIBERTY REVERSE MORTGAGE, INC. as beneficiary, and LENDERS FIRST CHOICE TITLE as trustee, and was recorded on 3/20/2008, as Instrument No. 20080248279, in Book XX, Page XX, in the Office of the County Recorder of Maricopa County, Arizona; and

WHEREAS, the Deed of Trust was insured by the United States Secretary of Housing and Urban Development (the Secretary) pursuant to the National Housing Act for the purpose of providing single family housing; and

WHEREAS, the beneficial interest in the Deed of Trust is now owned by the Secretary, pursuant to an Assignment of Deed of Trust dated 11/16/2020, recorded on 11/16/2020, as instrument number 20201117263, book XX, page XX, in the Office of the County Recorder, Maricopa County, Arizona; and

WHEREAS, a default has been made in the covenants and conditions of the Deed of Trust in that the payment due on 6/18/2026, was not made due to a borrower dies and the property is not the principal residence of at least one surviving borrower and remains wholly unpaid as of the date of this notice, and no payment has been made sufficient to restore the loan to currency; and

WHEREAS, the entire amount delinquent as of 6/18/2026 is **\$297,079.73**; and

WHEREAS, by virtue of this default, the Secretary has declared the entire amount of the indebtedness secured by the Deed of Trust to be immediately due and payable;

NOW THEREFORE, pursuant to powers vested in me by the Single Family Mortgage Foreclosure Act of 1994, 12 U.S.C. 3751 et seq., by 24 CFR part 27, subpart B, and by the Secretary's designation of Law Offices of Jason C. Tatman as Foreclosure Commissioner, recorded on 3/24/2023 as instrument number 20230150739, book XX, page XX notice is hereby given that on **8/11/2026 at 12:00 PM** local time, all real and personal property at or used in connection with the following described property will be sold at public auction to the highest bidder:

Legal Description:

LOT 866, ROSSMOOR LEISURE WORLD GOLDEN HILLS PLAT 10 AMENDED, A SUBDIVISION RECORDED IN BOOK 181 OF MAPS, PAGE 35, RECORDS OF MARICOPA COUNTY, ARIZONA

Commonly known as: 866 LEISURE WORLD, MESA, AZ 85206

The sale will be held IN THE COURTYARD, BY THE MAIN ENTRANCE OF THE SUPERIOR COURT BUILDING, 201 WEST JEFFERSON, PHOENIX, AZ 85003. The Secretary of Housing and Urban Development will bid an estimate of **\$300,668.28**.

There will be no proration of taxes, rents or other income or liabilities, except that the purchaser will pay, at or before closing, his prorata share of any real estate taxes that have been paid by the Secretary to the date of the foreclosure sale.

When making their bids, all bidders except the Secretary must submit a deposit totaling \$30,066.83 [10% of the Secretary's bid] **in the form of a certified check or cashier's check made out to the Secretary of HUD.** Each oral bid need not be accompanied by a deposit. If the successful bid is oral, a deposit of \$30,066.83 must be presented before the bidding is closed. The deposit is nonrefundable. The remainder of the purchase price must be delivered within 30 days of the sale or at such other time as the Secretary may determine for good cause shown, time being of the essence. This amount, like the bid deposits, must be delivered in the form of a certified or cashier's check. If the Secretary is the high bidder, ^{Unofficial Document} he need not pay the bid amount in cash. The successful bidder will pay all conveyancing fees, all real estate and other taxes that are due on or after the delivery of the remainder of the payment and all other costs associated with the transfer of title. At the conclusion of the sale, the deposits of the unsuccessful bidders will be returned to them.

The Secretary may grant an extension of time within which to deliver the remainder of the payment. All extensions will be for 15-day increments for a fee of \$500.00, paid in advance. The extension fee shall be in the form of a certified or cashier's check made payable to the Secretary of HUD. If the high bidder closes the sale prior to the expiration of any extension period, the unused portion of the extension fee shall be applied toward the amount due.

If the high bidder is unable to close the sale within the required period, or within any extensions of time granted by the Secretary, the high bidder may be required to forfeit the cash deposit or, at the election of the foreclosure commissioner after consultation with the HUD Field Office representative, will be liable to HUD for any costs incurred as a result of such failure. The commissioner may, at the direction of the HUD field office Representative, offer the Property to the second highest bidder for an amount equal to the highest price offered by that bidder.